

Recommendation GFCM/33/2009/1
on the establishment of a fisheries restricted area in the Gulf of Lion to
protect spawning aggregations and deep-sea sensitive habitats

The General Fisheries Commission for the Mediterranean (GFCM),

RECALLING that the objective of the Agreement for the establishment of the General Fisheries Commission for the Mediterranean (GFCM Agreement) is to ensure the conservation and sustainable use, at the biological, social, economic and environmental level, of marine living resources in the GFCM area of application;

RECALLING Recommendation GFCM/29/2005/1 on the management of certain fisheries exploiting demersal and deep-water species and, notably, paragraph 1 therein;

CONSIDERING that the Scientific Advisory Committee on Fisheries (SAC) assesses that several stocks are overexploited, some with a high risk of collapse, and that sustainable management requires that measures aimed at limiting the capture of juveniles are implemented;

REAFFIRMING its commitment to further improving the gear selectivity of demersal trawl fisheries beyond what can be achieved by a minimum 40 mm square mesh size, with a view to ensuring better protection of juveniles of several species as well as to reducing discarding practices in a multispecies context;

CONSIDERING that the selectivity of some fishing gear cannot go beyond a certain level in Mediterranean mixed fisheries and that, in addition to the overall control and limitation of the fishing effort and fleet capacity, it is fundamental to limit the fishing effort in areas in which adults of important stocks aggregate, in order to allow these stocks to provide the necessary recruitment, thus allowing for their sustainable exploitation;

NOTING that the SAC advises to ban the use of towed and fixed gear and longlines for demersal resources in an area on the continental shelf and slope of the eastern Gulf of Lion;

CONSIDERING that more scientific information is needed with a view to understanding the relevance of other adjacent areas on the continental shelf and slope, for the protection of spawners and sensitive habitats as well as to better know the level and spatial distribution of the fishing effort exerted;

PENDING the delivery of this additional information by the SAC;

ADOPTS, in conformity with Articles 5 b), 8 b) and 13 of the GFCM Agreement, the following recommendation:

1. The fishing effort for demersal stocks of vessels using towed nets, bottom and mid-water longlines, bottom-set nets shall not exceed the level of fishing effort applied in 2008 in the fisheries restricted area (FRA) of the eastern Gulf of Lion as bounded by lines joining the following geographic coordinates:

42°40' N, 4°20' E;

42°40' N, 5°00' E;

43°00' N, 4°20' E;

43°00' N, 5°00' E;

2. Contracting parties and cooperating non-contracting parties (CPCs) shall communicate to the GFCM Secretariat, not later than June 2009, the list of vessels that have used towed nets, bottom and mid-water longlines, bottom-set nets in the area referred to in paragraph 1 in the year 2008.
3. For each vessel, the list shall contain the following information:
 - Vessel name
 - Vessel register number
 - GFCM unique identifier (country ISO 3-alpha code + 9 digits, e.g. xxx000000001)
 - Previous name (if any)
 - Previous flag (if any)
 - Previous details of deletion from other registers (if any)
 - International radio call sign (if any)
 - Type of vessel, length overall (LOA) and gross tonnage (GT) and/or gross registered tonnage (GRT)
 - Name and address of owner(s) and operator(s)
 - Main gear(s) used to fish in the FRA
 - Seasonal period authorized for fishing in the FRA
 - Number of fishing days exerted by each vessel in the year 2008 and number of fishing days exerted in the FRA
4. CPCs shall establish a register of the fishing vessels authorized to fish in the area which ensures that the vessels not having records of fishing activities in the area prior 31 December 2008 are not authorized to start fishing therein.
5. CPCs shall communicate to the GFCM Secretariat, not later than September 2009, the legal conditions, as in force on 31 December 2008, as for the maximum time of daily fishing activity, the maximum number of days a vessel can stay at sea as well as the compulsory timing between the exit and return to the registered port of their fishing vessels.
6. CPCs shall ensure that fishing vessels operating in the area respect their obligation as in force on 31 December 2008, as for the maximum time of daily fishing activity, the maximum number of days a vessel can stay at sea as well as the legally compulsory timing to exit and return to the registered port.
7. For the FRA referred to in paragraph 1, CPCs shall call the attention of the appropriate national and international authorities in order to protect this area from the impact of any other human activity jeopardizing the conservation of the features that characterize this particular habitat as an area of aggregation of spawners.
8. Boundaries of the area and conditions to fish therein as referred to in previous paragraphs may change on the basis of SAC advice.